

the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

### **III. ANALYSIS**

Plaintiff avers that the Defendant has failed to comply with the March 19, 2026 hearing and April 6, 2026 formal order compelling Defendant to provide code-compliant responses to Plaintiff's Request for Production of Documents ("RFPD"), Set One, Nos. 10-12 with all responsive documents and electronically stored information ("ESI"). (Declaration of Edward Colbert, p. 6). The Court ordered the defendant to produce responses within fourteen days from the March 19 hearing date and also awarded sanctions in the amount of \$2,000.00 that were also to be paid within fourteen days from the hearing date. Fourteen days from the March 19, 2026 hearing is April 2, 2026 (*Id.*).

Plaintiff asserts that Defendant did not comply with the Court Order as it did not receive any further responses to RFPD Nos. 10-12 or the sanctions award within the fourteen day period. On April 14, 2026, the plaintiff sent correspondence to the defendant via e-mail to follow-up on the production of document. (*Id.*, and Exhibit F). Defendant responded that he was attempting to gather the required documents and would provide an update on April 17. (*Id.*, at p. 7). Plaintiff's counsel responded the next date confirming that he expected an update from Mr. Milks on April 17 and asked Defendant to confirm that his e-mail account was forensically imaged to ensure that production would be in the same native file and not simply in pdf form. (*Id.*, and Exhibit G). Plaintiff's counsel received no update from the defendant on April 17. (*Id.*). On April 20, Mr. Colbert reached out to the defendant regarding the court order and that a motion may be required. (*Id.*). Defendant responded that his ESI consultant was, "in the process of compiling the case file information" and that he would provide a status update when available. (*Id.*, and Exhibit H). That same day, the plaintiff's lead counsel, William A. Lapcevic e-mailed Mr. Milks to address compliance with the prior court order and to immediately provide the identity of his ESI consultant. (*Id.*). Counsel continued to meet-and-confer. (*Id.*, and Exhibit I).

On April 23, 2026, plaintiff's counsel received an envelope with Defendants Milks containing a cover letter dated April 22, 2026 stating that the thumb drive contained, "the case files for Santa Clara County Superior Court Cases No. 21CV388981, 22CV402440 and 22CV406644 regarding the document production relating to the subject case." (*Id.*, at p. 7-8; Exhibit J); a thumb drive; and a check in the amount of \$2,000.00 as ordered by the Court on March 19, 2026.

It is unopposed that the defendant complied with payment of sanctions of \$2,000.00 by submitting a written check to Plaintiff's counsel on April 23, 2026. (*Id.*, at p. 7). It is noted that the payment was late, but given that the full amount of sanctions was paid, the Court will not comment further on the payment of sanctions.

As to the further responses to RFPD Nos. 10-12, upon examination of the contents of the thumb drive, Plaintiff's counsel found that it only contained pleadings and exhibits filed with the Court in Santa Clara County Superior Court Cases No. 21CV388981, 22CV402440 and 22CV406644 that were publicly available. (*Id.*, at p. 8). Per Plaintiff's counsel, the contents of the thumb drive did not contain the following: e-mail correspondence between Defendant and his jointly represented clients, Plaintiff and/or Gilbert Marosi; (2) invoices for legal services rendered; (3) attorney client engagement agreements; (4) memoranda; (5) complete sets of discovery requests and responses; (6) document productions; (7) transcripts of any kind; and (8) objection free responses to Plaintiff's RFPD, Set One, Nos. 10-12. (*Id.*). Plaintiff's contacted Defendant Milks on May 1, 2026 regarding the deficiencies and offered Mr. Milks a chance to disagree with the characterization of the contents of the thumb drive and provided more time to comply to May 6, 2026. (*Id.*, and Exhibit K). Defendant responded on May 12, stating that he produced the entirety of Plaintiff's case files for the three cases No. 21CV388981, 22CV402440 and 22CV40664 and that he does not have access to ESI in connection with the case file under Rule of Court 2.502(3) and (4). (*Id.*, and Exhibit L). In response

Plaintiff's counsel highlighted that he refused to provide a response as to whether his e-mail account was imaged in order to ensure that all responsive information sought was forensically captured and emphasized that there was no production of a single e-mail between himself and Cecilia and Gilbert Marosi. (*Id.*). In prior discovery, Defendant had admitted that e-mail was used as a form of communication between himself and Cecilia and Gilbert Marosi. Plaintiff's counsel also noted that Defendant's reliance on Rule of Court, rule 2.502(3) and (4) were misplaced as it pertains to "definitions" to be given to the words, "court record" and "Court case information." Plaintiff's counsel emphasized that Mr. Milks had a duty or ability to provide Plaintiff's entire client file, communications, and ESI in his possession, custody, or control. (Declaration of Edward T. Colbert, p. 9); Exhibit M). Plaintiff's counsel offered to take the subject motion off calendar if Defendant would comply and produce RFPD 10-12. (*Id.*). Plaintiff's counsel received no further response.

The plaintiff seeks the following relief:

- (1) An Order compelling Defendant to provide code-compliant responses to Request for Production, set one, Nos. 10-12 as previously ordered by the Court after a March 19, 2026 hearing and April 6, 2026 Order within five days of the hearing;
- (2) Enforcement of the court's prior terms mandating Defendants to produce the plaintiff's complete client files including all electronically stored information ("ESI") and e-mail correspondence exchanged between Defendant's jointly represented clients, Cecilia and Gibler Marosi within five days of the hearing;
- (3) An order of evidence sanctions under Code of Civil Procedure section 2023.030(b), prohibiting Defendant from opposing the following: (i) Plaintiff has established that Defendant never obtained her consent to initiate litigation on her behalf; (ii) Plaintiff has established that Defendant never addressed any conflict of interest, of any kind, with Plaintiff; (iii) Plaintiff has established that Defendant never provided advice to Plaintiff or Gilbert Marosi concerning the likelihood that Plaintiff would be subject to an adverse judgment; (iv) Plaintiff has established that Defendant never advised Plaintiff or Gilbert Marosi concerning the likelihood that Plaintiff would be responsible for paying another party's attorneys' fees; (v) Plaintiff has established that Defendant did not provide any advice to Plaintiff or Gilbert Marosi concerning litigation-related documents that required Plaintiff's signature or verification (e.g., responses to discovery requests); (vi) Plaintiff has established that the amount of legal fees charged by Defendant were unreasonable; and (vii) Plaintiff has established that Defendant failed to provide legal advice to Plaintiff or Gilbert Marosi concerning the risks associated with the three different cases in which Defendant jointly represented Plaintiff and Gilbert Marosi.

Or in the alternative, under Code of Civil Procedure section 2023.030(c), an Order prohibiting Defendant from presenting evidence on the following matters: (i) any documents related to whether Defendant ever obtained Plaintiff's consent to initiate litigation on her behalf; (ii) any documents related to whether Defendant addressed any conflict of interest, of any kind, with Plaintiff; (iii) any documents related to advice given by Defendant to Plaintiff or Gilbert Marosi concerning the likelihood that Plaintiff would be subject to an adverse judgment; (iv) any documents related to advice given by Defendant to Plaintiff or Gilbert Marosi concerning the likelihood that Plaintiff would be responsible for paying another party's attorneys' fees; (v) any documents related to advice given by Defendant to Plaintiff or Gilbert Marosi concerning litigation-related documents that required Plaintiff's signature or verification (e.g., responses to discovery requests and engagement agreements); (vi) any documents related to the reasonableness of the legal fees charged by Defendant; and (vii) any documents related to any advice given by Defendant to Plaintiff or Gilbert Marosi concerning the risks associated with the three different cases in which Defendant jointly represented Plaintiff and Gilbert Marosi. (Plaintiff's, Memorandum of Points & Authorities, p. 11-16).

- (4) Monetary sanctions in the amount of \$5,400.00 pursuant to Code of Civil Procedure sections 2023.010(f), (g), (i) and 2023.030(a) as set forth under section IV.

Plaintiff's counsel emphasizes that "Defendant's obstinate failure and refusal to participate in the discovery process in good faith and his flouting of the Court's order has unnecessarily increased the cost of litigation and caused substantial and unjustified delays. Defendant's willful conduct has also caused significant prejudice to Plaintiff, who is 92 years old, as she has been prevented from obtaining critical information and documents needed to prosecute this action. (*Id.*, at p. 2).

The motion is unopposed. Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The plaintiff has met its burden in showing that the defendant has not complied with producing code-compliant discovery, ESI and email correspondence as well the plaintiff's file as previously addressed in the plaintiff's motion to compel and Court's Order. The Court will compel compliance with the prior Court Order and order the defendant to produce responses to RFPD, Nos. 10-12, ESI, email correspondence in native form, and client files.

#### **IV. SANCTIONS**

##### **A. EVIDENTIARY SANCTIONS**

Code of Civil Procedure section 2023.030 provides a broad range of sanctions available against anyone engaging in conduct that is a misuse of the discovery process, including the issuance of monetary, evidentiary, issue, and terminating sanctions. Misuses of the discovery process include failing to respond or to submit to an authorized method of discovery and disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010, subds. (d), (g)). "The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses." (Code Civ. Proc., § 2023.030, subd. (b)). "The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence." (Code Civ. Proc., § 2023.030, subd. (c)).

Here, Plaintiff asserts that Defendant Milk's failure and refusal to comply with court orders and engage in good faith discovery merits evidentiary sanctions.

However, the Court notes that Defendant Milks complied with some portions of the Court Order including full payment of the sanctions award in the amount of \$2,000.00 and delivery of further responses in form of a thumb drive. Although the Court recognizes the plaintiff's position that the contents of the thumb drive was deficient and thus noncompliant, the court notes that discovery statutes evidence an incremental approach regarding evidentiary and monetary sanctions. (*Doppes, supra*, 174 Cal.App.4th at 992). The Court takes into consideration the totality of the circumstances and attempts to curb noncompliance while attempting to impose less severe sanctions to produce compliance. (*Mileikowsky, supra*, Cal.App.4th at 279–280).

Thus, the Court DENIES the plaintiff's request to impose evidentiary sanctions without prejudice as premature.

## **B. MONETARY SANCTIONS**

Pursuant to Code of Civil Procedure section 2023.010, “the court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc. §§ 2023.010 and 2031.300).

Plaintiff seeks a total of \$5,400.00 in sanctions against the defendant for nine hours of time on this motion at the hourly rate of \$600.00. Plaintiff’s counsel notes he seeks less hours than he actually spent including 10 hours of meeting-and-conferring and preparing the subjection motion and an estimated 5 hours for reviewing any opposition briefs and filing a reply brief. The Court notes that the motion was unopposed so the 5 hours of estimated time is immaterial.

The Court finds that the plaintiff filed this motion to compel compliance with a court order arising from a RFPD request that was submitted nearly a year ago. The present motion has underlying facts to its motion to compel that was heard on March 19, 2026. The Court will award the plaintiff six hours of work at the rate of \$400.00, for a total sanction about of \$2,400.00.

## **V. CONCLUSION**

Based on the foregoing, and the motion being unopposed, the Court issues the following ORDERS:

- (1) Plaintiff’s motion to compel the defendant to comply the previous March 19, 2026 court order formally filed on April 6, 2026, is GRANTED. Defendant is ORDERED to provide responses to RFPD Nos. 10-12 as previously mandated within 10 day of this hearing date.
- (2) Plaintiff’s motion to enforce the Court’s prior order mandating the defendant to produce Plaintiff Cecilia Marosi’s client files, including ESI and e-mail correspondence exchanged between the defendant, who jointly represented Cecilia and Gilbert Marosi, is GRANTED. Defendant is ORDERED to produce Plaintiff Cecilia Marosi’s client files, including ESI and e-mail correspondence exchanged between the defendant within 10 day of this hearing date.
- (3) Plaintiff’s motion for an order of evidence sanctions prohibiting Defendant from proffering certain evidence or in the alternative, an order of sanction prohibiting Defendant from opposing certain issues at hand is DENIED without prejudice as premature.
- (4) Plaintiff’s request for monetary sanctions in the amount of \$5,400.00 is DENIED as to the full requested amount, but GRANTED in the amount of \$2,400.00. Defendant is ORDERED to pay sanctions within 10 days of this hearing date.

The Court will prepare the formal Order.

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Calendar Lines # 5</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>Case Name</b> U.S. Bank National Association vs Sarkis Sayadi                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>Case No.</b> 23CV414085                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <p><b>Motion to Enter Judgment Pursuant to Code of Civil Procedure section 664.6</b></p> <p><b>I. <u>BACKGROUND</u></b></p> <p>On August 26, 2025, Plaintiff US Bank National Association d/b/a Elan Financial Service (“Bank”) filed a motion to enter judgment pursuant to Code of Civil Procedure section 664.6 that was entered on July 26, 2024. The motion was accompanied by a proof of service indicating mail service on August 26, 2025.</p> <p>The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489).</p> <p>The Court carefully reviewed the following: Plaintiff’s notice motion (totaling 3 pages); memorandum of points and authorities in support of the motion to enter judgment (totaling 3 pages); Declaration of Zhen Ren in support of the motion and attached Exhibit A (totaling 10 pages); Memorandum of Costs (totaling 2 pages); and the pleadings.</p> <p><b>II. <u>LEGAL STANDARD</u></b></p> <p>Pursuant to Code of Civil Procedure section 664.6: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6).</p> <p>Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (<i>Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.</i> (2002) 103 Cal.App.4th 30, 37). Accordingly, “parties” under section 664.6 means the litigants themselves, not their attorneys. (<i>Levy v. Superior Court</i> (1995) 10 Cal.4th 578, 586 (holding “we conclude that the term ‘parties’ as used in section 664.6 means the litigants themselves, and does not include their attorneys of record.”).) Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (<i>J.B.B. Investment Partners, Ltd. v. Fair</i> (2014) 232 Cal.App.4th 974, 985).</p> <p>“Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (<i>Weddington Prods., Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809). When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (<i>Id.</i>) The court may not “create the material terms of a settlement,” and must instead decide on what terms the parties agreed upon. (<i>Id.</i>; <i>Terry v. Conlan</i> (2005) 131 Cal.App.4th 1445, 1460; <i>Osumi v. Sutton</i> (2007) 151 Cal.App.4th 1355, 1360; <i>Fiore v. Alvord</i> (1985) 182 Cal.App.3d 561, 565-566). “In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone.” (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994).</p> <p><b>III. <u>ANALYSIS</u></b></p> |

Here, Plaintiff Bank asserts that the parties entered into a settlement agreement pursuant tot Code of Civil Procedure section 664.6 on July 26, 2024. (Declaration of Ren; Exhibit A). The total settlement agreement was for Defendant Sayadi to pay Plaintiff \$2,300.00 by December 15, 2025. Monthly payments of \$100.00 was to be paid on or before February 15, 2024 with continual \$100.00 monthly payments until December 15, 2025. (*Id.*). The agreement also addressed that failure to comply with the payment schedule may result in a default. (*Id.*). The written settlement agreement indicated the total amount, scope, and payment terms of the settlement. The settlement agreement was signed by all of the parties to the agreement and filed with the Court. Defendant failed to make payments starting on May 15, 2024 to the present. The last payment received was on April 5, 2024. Plaintiff seeks damages of \$4,537.89 as in its Complaint with a \$300.00 credit for a total outstanding principal of \$4,237.89. (*Id.*). Thus, Plaintiff has met its burden.

Plaintiff's counsel filed a memorandum of costs in the amount of \$293.50 compromised of a \$225.00 filing and motion fees as well as a \$68.50 service of process fee.

In total, the plaintiff seeks a total judgment in the amount of \$4,531.39.

#### **IV. CONCLUSION**

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter judgment in favor of Plaintiff Bank in the amount of \$4,531.39 against Defendant Sayadi. The Court will prepare the Order.

#### **Calendar Lines # 6**

**Case Name** Nemat Maleksalehi et al vs Baudeli Plastering, Inc. et al

**Case No.** 24CV442712

#### **Motion to Approve Good Faith Settlement**

##### **I. BACKGROUND**

This breach of contract claim stems from a construction defect claim of a single family home in Saratoga. Plaintiffs Nemat and Maryam Maleksalehi filed a Complaint on July 9, 2024. Subsequently, other defendants, cross complainants, and cross-defendants were brought into the action. Cross defendant Shawn Malek and the Malek Family Real Estate, LLC were dismissed on December 1, 2025. There are also three notices seeking approval of settlement from other parties including: defendant Baudeli Plastering Inc., defendant Edessa Corporation d/b/a Naddours Ornamental Iron, and this motion. Before the Court today, is defendant TBS Design Gallery, Inc. ("TBS")'s application for determination of a good faith settlement that was filed on May 14, 2026. The motion was accompanied by a proof of service on May 14, 2026 indicating electronic service on the plaintiff's as well as non-settling parties.

The motion is unopposed. Code of Civil Procedure section 877(a)(2) requires an opposition by any non-settling parties within 25 days of mail notice or June 8, 2026 and Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: Defendants TBS's notice, memorandum of points and authorities, Declaration of Nora R. Boardman in support of TBS's application for good faith settlement, and proof of service to all parties (totaling 11 pages).

## **II. LEGAL STANDARD**

Pursuant to California Code of Civil Procedure, Section 877.6(c), “A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” Section (d) provides that the party asserting the lack of good faith shall have the burden of proof on that issue.

Under Code of Civil Procedure section 877(a)(2): “In the alternative a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. The application shall indicate the settling parties, and the basis, terms, and amount of the settlement. The notice, application, and proposed order shall be given by certified mail, return receipt requested, or by personal service. Proof of service shall be filed with the court. Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a non-settling party may file a notice of motion to contest the good faith of the settlement. If none of the non-settling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement. The notice by a non-settling party shall be given in the manner provided in subdivision (b) of Section 1005. However, this paragraph shall not apply to settlements in which a confidentiality agreement has been entered into regarding the case or the terms of the settlement.

The court also considers the factors set forth in *Tech-Built, Inc.* that include:

- (1) “a rough approximation of plaintiffs’ total recovery”;
- (2) “the settlor’s proportionate liability”;
- (3) “the amount paid in settlement”;
- (4) “the allocation of the settlement proceeds among plaintiffs”;
- (5) “a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial”;
- (6) the settling party’s “financial conditions and insurance policy limits”; and
- (7) any evidence of “collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.” (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates, supra*, 38 Cal.3d at 499).

“Practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement.” (*Id.*)

The “good faith” concept in Code of Civil Procedure section 877.6 is a flexible principle imposing on reviewing courts the obligation to guard against the numerous ways in which the interests of nonsettling defendants may be unfairly prejudiced. (*Rankin v. Curtis* (1986) 183 Cal. App. 3d 939, 945). Accordingly, under *Tech-Bilt*, the party asserting the lack of “good faith” may meet this burden by demonstrating that the settlement is so far “out of the ballpark” as to be inconsistent with the equitable objectives of the statute. (*Tech-Bilt, supra*, 38 Cal.3d at 499-500). Such a demonstration would establish that the proposed settlement was not a “settlement made in good faith” within the terms of section 877.6. (*Id.*). Pursuant to California Code of Civil Procedure, section 877.6(c), “A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” Section (d) provides that the party asserting the lack of good faith shall have the burden of proof on that issue. “Good faith may be found only if there has been no collusion between the settling parties and where the settlement amount appears to be

within the ‘reasonable range’ of the settling party’s proportionate share of comparative liability for a plaintiff’s injuries. (*North County Contractor’s Assn. v. Touchstone Ins. Services* (1994) 27 Cal.App.4th 1085, 1089-1090).

When a good faith motion is contested, the moving parties bears the initial burden of producing evidence in support of the requested good faith determination. “Section 877.6 and *Tech-Bilt* require an evidentiary showing, through expert declarations or other means, that the proposed settlement is within the reasonable range permitted by the criterion of good faith.” (*Mattco Forge v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1351). “Substantial evidence” is required. (*Id.* at p. 1352). A declaration from a settling defendant’s attorney that states, in conclusory fashion, that the client has little, or no share of the liability may not be sufficient. (*Greshko v. County of Los Angeles* (1987) 194 Cal.App.3d 822, 834-35; see also 3 Weil & Brown, California Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶¶ 12:774, 12:872-873). The ultimate burden of persuasion is on the party opposing the good faith determination. The “party asserting a lack of good faith shall have the burden of proof on that issue.” (Code Civ. Proc. § 877.6(d); see also 3 Weil & Brown, *supra*, at ¶ 12:875).

The law favors settlements. (*Potter v. Pacific Coast Lumber Co.*, (1951) 37 Cal.2d 592, 602. Settlement agreements “are highly favored as productive of peace and goodwill in the community, and reducing the expense and persistency of litigation.” (*McClure v. McClure* (1935) 100 Cal. 339, 343). Indeed, it has been said that a major goal of section 877 is the ‘encouragement of settlements.’ (*Insurance Co. of North America v. United States Fire Ins. Co.*, (1973) 34 Cal.App.3d 391, 396). Courts have made it clear that it is only under “rare” circumstances that a settlement will be found to be in bad faith. (*Stambaugh v. Pacific Gas and Electric Company* (1976) 62 Cal.App.3d 231, 238; *Kohn v. Superior Court (Horn)* (1983) 142 Cal.App.3d 323, 327).

### **III. ANALYSIS**

Here, Defendant TBS seeks to enforce the settlement between TBS and the plaintiff for \$10,000.00 (“Settlement Amount”) as it meets the *Tech-Bilt* factors and is not disproportionate or out of the ballpark. TBS and the plaintiff reached this settlement with the assistance by mediator Bob Bellagamba (Declaration of Nora R. Boardman, p.8). Defendant TBS asserts that the scope of work in the construction of the plaintiff’s residence was limited to providing windows. (TBS’s motion, p. 3). TBS avers that the plaintiff’s do not have any allegations against the windows that were delivered. (*Id.*, at p. 5). TBS was not responsible for installation of the windows. (*Id.*, at p. 4). However, TBS seeks to resolve the matter and reached a settlement with the plaintiff and provided notice to non-settling parties. TBS asserts that due to its limited role in construction and no allegations against the windows that were delivered, the Settlement Amount is not grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate Defendant TBS’s liability to be in this matter. (*Id.*). TBS asserts that there is no evidence of collusion, fraud, or tortious conduct aimed at injuring the non-settling defendants. Therefore, the early resolution between the plaintiff and TBS reflect a reasonable range or within-the-ballpark test. (*Tech-Bilt, supra*, 38 Cal.3d at 499-500).

The motion is unopposed. Code of Civil Procedure section 877(a)(2) requires an opposition by any non-settling parties within 25 days of mail notice. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Thus, there has been no showing that the settlement between the plaintiffs and Defendant TBS was not made in good faith.

The Court finds that the moving/party Defendant TBS has met its burden.

### **IV. CONCLUSION**



Based on the foregoing, the motion for determination of good faith settlement between the plaintiffs and Defendant TBS is GRANTED. The Court will prepare the Order.

**Calendar Lines # 7**

**Case Name** Lauren McGuire vs Ford Motor Company et al

**Case No.** 26CV485736

**Petition to Compel Arbitration**

**I. BACKGROUND**

Plaintiff Lauren McGuire (“Plaintiff”) purchased a 2020 Ford Explorer (“Subject Vehicle”) in November 2020 from Future Ford Lincoln of Concord (Dealership). (Complaint at ¶ 7). Plaintiff delivered the Subject Vehicle to Defendant for substantial repair on at least one occasion. (*Id.* at ¶ 60). Plaintiff alleges that Defendant “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 62). Plaintiff sued Dealership and Ford Motor Company in January 2026. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (“RISC”) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

**II. LEGAL STANDARD**

Pursuant to Code of Civil Procedure Code of Civil Procedure section 1281.2: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060). The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755).

Dealership maintains that the FAA governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp 6:25-7:1). The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130). To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir.

2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170).

### III. ANALYSIS

#### A. THERE IS A VALID AGREEMENT TO ARBITRATE

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A). Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged notice of the arbitration provision as follows: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on page 7 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Ibid.*). The RISC further drew the arbitration provision to Plaintiff’s attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 7 OF THIS CONTRACT, BEFORE SIGNING BELOW.” (*Ibid.*). Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.’ ”]).

Plaintiff argues Dealership has failed to properly authenticate the RISC and thus fails to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted). Here, Dealership has attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 2:25-4:1.) In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166). Dealership has shown a valid agreement to arbitrate.

#### B. THE SCOPE OF THE ARBITRATION AGREEMENT COVERS PLAINTIFF’S CLAIMS

Here, the arbitration provision broadly applies to “any claim or dispute, whether in contract, tort, statute, or otherwise . . . which arises out of or relates to your . . . purchase or condition of this vehicle, this contract or any resulting transaction or relationship . . . .” (Clayton Decl., Ex. A). Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue “warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership].” (Opposition at p. 2:8-10.) That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer’s attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126). By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff’s claims.

The court does not reach Dealership’s arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership’s arguments on those points.

### **C. THE ACTION IS STAYED IN ITS ENTIRETY**

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Dealership argues “[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective.” (Reply at p. 8:23-24). Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

### **IV. CONCLUSION**

Based on the foregoing, the petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. The Court will prepare the Order.